

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-18

Access One Transport, Inc., Complainant v. CMA CGM S.A., Respondent

ANSWER TO VERIFIED COMPLAINT

Respondent, CMA CGM S.A. (“CMA”), by its undersigned attorneys, answers the Verified Complaint of Access One Transport, Inc. (“Access One”) as follows:

1. CMA is without sufficient information to either admit or deny the allegations of Paragraph 1 of the Verified Complaint, and therefore denies the same.

2. CMA admits that it is a *société anonyme* organized and existing under the laws of France with a corporate headquarters at 4 Quai d'Arenc, 13002 Marseille, France.

3. CMA admits only that it is a *société anonyme* existing under the laws of the Republic of France with a principal place of business at Boulevard Jacques Saade, 4 Quai d'Arenc, 13002 Marseille, France. CMA further admits that CMA CGM (America), LLC acts as CMA's agent for certain purposes within the United States, and that CMA CGM (America), LLC is authorized to do business in California, has a principal office at 1 CMA CGM Way, Norfolk, Virginia 23502, and an office at 3501 Jamboree Road, Suite 300, Newport Beach, California 92660.

4. CMA admits the allegations in Paragraph 4 of the Verified Complaint.

5. CMA denies the allegations in Paragraph 5 of the Verified Complaint as written. Answering further, CMA avers that it publishes, both on the internet and in its UIIA Addendum, an email address to be used to raise disputes or other issues related detention and demurrage.

6. Paragraph 6 of the Verified Complaint contains only conclusions of law to which no response is required. To the extent a response is required, CMA is without sufficient information to admit or deny the allegations and, therefore, denies the same.

7. Paragraph 7 of the Verified Complaint contains only conclusions of law to which no response is required. To the extent a response is required, CMA is without sufficient information to admit or deny the allegations and, therefore, denies the same.

8. Paragraph 8 of the Verified Complaint contains only conclusions of law to which no response is required. To the extent a response is required, CMA is without sufficient information to admit or deny the allegations and, therefore, denies the same.

9. CMA is without sufficient information to admit or deny the allegations in Paragraph 9 of the Verified Complaint and, therefore, denies the same.

10. CMA is without sufficient information to admit or deny the allegations in Paragraph 10 of the Verified Complaint and, therefore, denies the same.

11. CMA admits only that its vessels call on several terminals within the Ports of Los Angeles and Long Beach. CMA is without sufficient information to admit or deny the remaining allegations in Paragraph 11 of the Verified Complaint and, therefore, denies the same.

12. CMA admits that CMA CGM (America) LLC is a party to the UIIA.

13. CMA admits that its addendum to the UIIA identifies the free time for motor carriers and the variable detention rates charged by CMA for containers detained beyond free time. CMA further avers that, under its addendum to the UIIA, the amount of free time and detention rates vary by port location and container type.

14. CMA admits the allegations in Paragraph 14 of the Verified Complaint.

15. CMA is without sufficient information to admit or deny the allegations in Paragraph 15 of the Verified Complaint and, therefore, denies the same.

16. CMA is without sufficient information to admit or deny the allegations in Paragraph 16 of the Verified Complaint and, therefore, denies the same.

17. CMA admits only that it notifies motor carriers of their options to return empty containers. The remaining allegations in Paragraph 17 of the Verified Complaint are denied.

18. CMA admits only that it notifies motor carriers of their options to return empty containers. The remaining allegations in Paragraph 18 of the Verified Complaint are denied.

19. CMA is without sufficient information to admit or deny the allegations in Paragraph 19 of the Verified Complaint and, therefore, denies the same.

20. CMA denies that all of its designated empty return locations required appointments. CMA is without sufficient information to admit or deny the remaining allegations in Paragraph 20 of the Verified Complaint and, therefore, denies the same.

21. CMA is without sufficient information to admit or deny the allegations in Paragraph 21 of the Verified Complaint and, therefore, denies the same.

22. CMA is without sufficient information to admit or deny the allegations in Paragraph 22 of the Verified Complaint and, therefore, denies the same.

23. CMA is without sufficient information to admit or deny the allegations in Paragraph 23 of the Verified Complaint and, therefore, denies the same.

24. CMA is without sufficient information to admit or deny the allegations in Paragraph 24 of the Verified Complaint and, therefore, denies the same.

25. CMA denies the allegations in Paragraph 25 of the Verified Complaint.

26. CMA is without sufficient information to admit or deny the allegations in Paragraph 26 of the Verified Complaint and, therefore, denies the same.

27. CMA is without sufficient information to admit or deny the allegations in Paragraph 27 of the Verified Complaint and, therefore, denies the same.

28. CMA denies the allegations in Paragraph 28 of the Verified Complaint.

29. CMA denies the allegations in Paragraph 29 of the Verified Complaint.

30. CMA denies the allegations in Paragraph 30 of the Verified Complaint.

31. Paragraph 31 does not contain any factual allegations to which a response is required. To the extent a response is required, CMA denies the allegations in Paragraph 31 of the Verified Complaint.

32. CMA admits the allegations in Paragraph 32 of the Verified Complaint.

33. Paragraph 33 of the Verified Complaint contains only conclusions or statements of law to which a response is not required. To the extent a response is required, CMA is without sufficient information to admit or deny the allegations and, therefore, denies the same.

34. Paragraph 34 of the Verified Complaint contains only conclusions or statements of law to which a response is not required. To the extent a response is required, CMA is without sufficient information to admit or deny the allegations and, therefore, denies the same.

35. Paragraph 35 of the Verified Complaint contains only conclusions or statements of law to which a response is not required. To the extent a response is required, CMA is without sufficient information to admit or deny the allegations and, therefore, denies the same.

36. CMA denies the allegations in Paragraph 36 and all subparts of the Verified Complaint.

37. CMA denies the allegations in Paragraph 37 of the Verified Complaint.

38. CMA denies the allegations in Paragraph 38 of the Verified Complaint.
39. CMA denies the allegations in Paragraph 39 and all subparts of the Verified Complaint.
40. CMA denies the allegations in Paragraph 40 of the Verified Complaint.
41. Paragraph 41 of the Verified Complaint contains only conclusions of law to which no response is required. To the extent a response is required, CMA denies the allegations.
42. CMA denies that Access One is entitled to any of the relief identified in Paragraph 42 and all subparts of the Verified Complaint. CMA further avers that some of the relief sought by Access One exceeds the permissible scope of the Federal Maritime Commission's statutory authority.
43. Paragraph 43 of the Verified Complaint does not contain any factual allegations to which a response is required.
44. Any factual allegations in the Verified Complaint not specifically admitted herein are denied.

AFFIRMATIVE DEFENSES

1. Access One's Verified Complaint fails to state a claim for which relief can be granted.
2. Access One has failed to plead essential elements of a claim under 46 U.S.C. §41102(c) or 46 U.S.C. §41104(a)(10).
3. CMA committed no violation of the Shipping Act and is not liable to Access One on the causes of action alleged in the Verified Complaint.

4. At all relevant times, CMA acted in accordance with the terms of its bills of lading, contracts of carriage, UIIA Agreement (including relevant addenda) and applicable tariffs.

5. Any damage sustained by Access One were caused solely by the actions or fault of third parties for whom CMA is not responsible.

6. Any damages sustained by Access One were solely because of its own actions or inactions.

7. Some or all of Access One's claims are barred by the applicable statute of limitations.

8. Access One has failed to take reasonable steps to mitigate its damages.

9. Any damages allegedly sustained by Access One may have been caused by force majeure.

10. CMA specifically reserves the right to assert any other affirmative defenses of which it becomes aware as discovery in this matter proceeds.

11. Some or all of Access Ones claims are barred by the doctrine of accord and satisfaction.

12. CMA has worked diligently to resolve amicably meritorious claims

13. CMA had no opportunity to foresee or mitigate damages beyond the scope of contractual charges for detention or demurrage.

14. Some or all of Access One claims are barred by Force Majeure.

15. To the extent Access One is attempting to have legal standards imposed by OSRA 2022 applied to claims that predate the promulgation of that law, Access One's claims are not subject to the legal standard set forth in OSRA 2022.

WHEREFORE, Respondent, CMA CGM S.A., respectfully requests that the Presiding Officer and the Commission dismiss the Verified Complaint with prejudice, award Respondent reasonable attorneys' fees and costs, and grant any further relief deemed just and proper.

REQUEST FOR ORAL HEARING

Pursuant to 46 CFR 502.62(b)(3), CMA requests an oral hearing to take place in Washington, D.C.

Dated: May 21, 2024

Respectfully submitted,

/s/ C. Wiley Grandy
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CERTIFICATE OF SERVICE

I certify that on the 21st day of May 2024 a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with: the Initial Order dated April 29, 2024 in the above-referenced proceeding; 46 CFR Part 502; and the Commission's Order of May 12, 2020 as follows:

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Respectfully submitted,

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